

**NEW YORK SUPREME COURT
COUNTY OF NEW YORK**

People v. Luigi Nicholas Mangione
Ind. No. 75657/2024

New York, New York
February 21, 2025

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MS. FRIEDMAN AGNIFILO: Good afternoon, your Honor. My name is Karen Friedman Agnifilo for Luigi Mangione. I'm joined by Jacob Kaplan. I would ask that your Honor please allow my client to be unshackled for this court appearance, please.

THE COURT: Go ahead you can uncuff him.

(A pause in the proceeding.)

THE COURT: All right. Unless you need him to sign something, they'll allow him to do it after; otherwise, for security reasons, they want to keep him cuffed.

MS. FRIEDMAN AGNIFILO: I'd like to make a record regarding that.

THE COURT: Sure.

MS. FRIEDMAN AGNIFILO: You'd let me know is this an appropriate time to do that?

THE COURT: Sure, but there's no jury here, so.

MS. FRIEDMAN AGNIFILO: I understand, your Honor. But this is a highly publicized and covered and photographed court proceeding with strong public interest, and when my client comes to court, because he's in federal custody, they bring him, they walk him in leg shackles, arm shackles. They have him sitting here, and there is no presumption of innocence.

I'd also like to let you know that I go visit him regularly at MDC where we sit in a room, he's completely unshackled. He is a model prisoner at MDC. There has not been an issue. He has not given the police one single problem. There is no reason for him to be this way in court with all these officers here standing here.

THE COURT: I understand that, but for security reasons and for the security people here, they would prefer him to remain cuffed. Okay. Good afternoon everyone. So, update on discovery.

[proceeding continues]

MS. FRIEDMAN AGNIFILO: We object to a motion schedule at this time, your Honor.

THE COURT: It appears you have enough. Listen, if you don't get the affidavits for the warrants, and I don't know exactly what they're going to be redacting from the grand jury minutes, but if we're just talking about identities, that would be enough for you to do your motions.

MS. FRIEDMAN AGNIFILO: Well, we're talking about there are three separate prosecutions that are happening about one event, and there's a Pennsylvania matter, there's a federal matter, there's a New York matter, all three of which will involve discovery.

We just today have been handed sounds like a lot more discovery, but frankly, we haven't gotten the bulk of the discovery. We haven't gotten a single DD5. We haven't gotten any police paperwork.

I understand and appreciate Mr. Kaplan's remarks that we are going to be getting that in two weeks, but we have yet to receive any of that. We have yet to receive copies of --

THE COURT: You got some of that today. You got that today.

MS. FRIEDMAN AGNIFILO: No, we do not have that today, your Honor. That's what he said. He anticipates that they will provide in two weeks. They're in the process of doing that.

[proceeding continues]

MS. FRIEDMAN AGNIFILO: Your Honor, we also object to setting a motion schedule while we are in the process of speaking to the federal authorities about they're still deciding whether or not to seek the death penalty against Mr. Mangione. Obviously, that's an extremely serious matter that we're in the process of providing mitigation for the Feds for that purpose, and that is where our focus is.

That is one of the reasons why this discovery is so critical and why we need all of it before we can even begin to anticipate exactly what we are going to be putting in our motions.

As I alluded to in our court appearance that we had previous to this appearance, your Honor, one of the issues here is that the two theories of prosecution are opposite and inconsistent with one another, and by defending ourselves in state court, we are potentially providing fodder for the federal court appearance case and vice versa. And so it really is critical in this case that we receive literally everything, especially all of the information and the police work that was done here.

And one more thing I just want to say about Altoona, Pennsylvania, your Honor, if I may. From the limited information that we have, I have some police paperwork from Altoona already that I received from Mr. Mangione's Pennsylvania counsel as well as there was one body-worn camera despite there being about a dozen police officers in the McDonald's when Luigi was arrested. We have one body-worn

camera that was provided by the Manhattan DA's office that shows an angle.

I think there's a very, very serious search issue in this matter, and there might be evidence that is suppressed in this case, which brings me to another related issue that I'd like to discuss, your Honor, if I may.

And I really appreciate you allowing me to make a record, but because there is a serious search and seizure issue here, and because we think that our client's constitutional rights were violated in Pennsylvania, we want to be able to have the opportunity to litigate that. However, we have been afforded -- his right to a fair trial is continuously being impacted.

And I want to just bring to your Honor's attention my shock, frankly, that the chief of detectives of the NYPD along with the New York City mayor had time to sit down with HBO and put hair and makeup on and provide information about the arrest, the prosecution, their theory about the case, and evidence about Mr. Mangione that we have not even received.

This journal that they're calling his manifesto, we have never have been provided copies. They had actors playing Luigi on television -- it didn't sound anything like him, by the way.

THE COURT: All right. I'm going to cut you off, because that has nothing to do with you moving to have the grand jury minutes inspected for sufficiency, that's definitely going to be an issue in this case, or moving to controvert any of the warrants. You could always supplement your motions, but it's got to start.

So you should have your motions in by April 9th. People to respond by May 14th. June 26th. We'll see if I can have a decision by then, but I hope to. And again, the sooner we order the hearings, the sooner you'll have your suppression hearing.

MS. FRIEDMAN AGNIFILO: Yes, your Honor.

THE COURT: We'll see you on June 26th.

MS. FRIEDMAN AGNIFILO: Your Honor, just one logistical request. Because of the different custody and court matters, we are unable to meet with Luigi before or after alone, and we would just request if we could just have a minute or two of privacy with him, or at least to have a little space so we can talk to him.

THE COURT: One second.

(A pause in the proceeding.)

THE COURT: You'd have to do it now. Right here.

MS. FRIEDMAN AGNIFILO: Your Honor, if I may just make one more record. Because of this unusual circumstance of him being in federal custody but proceeding first on the state case, we do just want to make a record that I think Mr. Mangione is being

treated differently than other defendants who would be prosecuted in this court who would be able to have access to his attorneys, who could sit here unshackled, who your Honor could make decisions --

THE COURT: You know, I don't have a problem remanding him right here so he's here in the city. I thought you guys, the People were working on trying to get him so we have custody in that the federal jurisdiction said we were going first, meaning New York.

MR. Z. KAPLAN: Your Honor, the agreement remains that we are to try this case first; however, there's no agreement up to this point to transfer custody from federal custody to state custody.

THE COURT: I mean, is there even an indictment?

MS. FRIEDMAN AGNIFILO: No, your Honor.

THE COURT: In federal court? So they're holding him on a complaint.

MR. Z. KAPLAN: On the consent of the defense.

MS. FRIEDMAN AGNIFILO: When they're hanging the death penalty over your head, you have no choice but to consent.

THE COURT: I get it. Okay. Can you come up for a second.

(Whereupon, an off-the-record discussion was held at the bench.)

MS. FRIEDMAN AGNIFILO: (Conferring with client.)

THE COURT: All right.

(Whereupon, the proceeding was adjourned to June 26, 2025.)

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